

Anil v. State of U.P.

Allahabad High Court · Division Bench · 10 May 2023 · 2023:AHC:100886-DB · Writ-C No. 15881 of 2023 · **Writ disposed; department to decide Clause 4.4 indemnity application within four weeks.**

HEADNOTE

A legal occupant whose supply was removed on the landlord's complaint may have the licensee decide sanction of a connection after furnishing the Clause 4.4 indemnity bond in Annexure 4.2 form. The Division Bench recorded the department's concession that such an occupant is entitled to apply on that bond, and directed a decision after hearing within four weeks without itself granting the connection.

FACTUAL SUMMARY

Anil sought a writ directing the electricity department to provide a connection at his premises in village and post Chaubeypur, Kandipur, District Varanasi. He had applied and obtained a connection, but the department later removed it on a complaint by the landlord. Counsel for the department accepted that a legal occupant may apply for a connection on furnishing the Clause 4.4 indemnity bond. The petitioner undertook to submit the bond if not already filed and asked for a direction to provide supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Where supply was removed on the landlord's complaint, the licensee must, if the occupant furnishes an indemnity bond as per Annexure 4.2 contemplated by Clause 4.4 of the U.P. Electricity Supply Code, 2005, take a decision after hearing the parties on sanction of the connection within four weeks. A legal occupant is entitled to apply on that bond; the Court did not itself grant the connection. ¶ 2-5

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents Petition disposed by directing the electricity department to decide sanction of connection within four weeks if the petitioner furnishes the Clause 4.4 indemnity bond in Annexure 4.2 form, after hearing the parties. ¶ 5

clause-4.4-occupant-connection-on-indemnity-bond The department conceded, and the Court recorded, that a legal occupant of premises is entitled to apply for an electricity connection on furnishing the indemnity bond contemplated under Clause 4.4. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS A LEGAL OCCUPANT AND WHETHER THE CONNECTION SHOULD BE SANCTIONED ON THE MERITS

Left to the electricity department after hearing the parties. ¶ 5